

over third parties' appearances. For Defendant's non-appearance fee, Defendant indicates that it served notice that it was unavailable for that day. Plaintiff failed to justify the non-appearance deposition fee, when it had notice that Defendant would not appear. Based on this, the court grants the motion.

Defendant speculates that there were extra surcharges in the deposition invoices. Plaintiff provides some invoices in opposition. The court sees no extraordinary charges. To this, the motion is denied.

Defendant challenges service of process on third party dealership personnel as non-necessary. The court finds that these are necessary witnesses as they relate to the repair history of the vehicle. To this, the motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVME2405571	RAMOS VS SLABAUGH	DEMURRER

Tentative Ruling: SUSTAIN Defendant's Demurrer to the Second Cause of Action for Survival Action for Pre-Death Pain and Suffering, without leave to amend.

This is an action for medical malpractice. On November 27, 2024, Plaintiff Angelica Ramos ("Angelica"), the daughter of Rodolfo S. Ramos Jr. ("Decedent") filed a Complaint against multiple defendants, including Defendants Douglas P. Slabaugh, M.D. ("Defendant"), asserting a single cause of action for wrongful death by medical malpractice. The Complaint alleged that Decedent died on December 1, 2023. (Compl. ¶ 1.)

On March 4, 2025, Angelica, along with other plaintiffs, including Robert Ramos, Rodolfo Ramos, Reylene Ramos, a minor by and through her Guardian Ad Litem, Julissa Lopez ("Plaintiffs"), the children of Decedent, filed the First Amended Complaint ("FAC") against the same defendants, asserting the same cause of action for wrongful death by medical malpractice.

On October 28, 2025, Plaintiffs filed the operative Second Amended Complaint ("SAC") against the same defendants, asserting the same cause of action for wrongful death by medical malpractice and adding a survival action for pre-death pain and suffering by Angelica.

Defendant demurs to the second cause of action for survival action for pre-death pain and suffering, arguing that it is untimely and barred by the statute of limitations under CCP § 366.1. Defendant asks the Court to sustain his demurrer without leave to amend.

In opposition, Plaintiffs argue that the second cause of action for survival action relates back to the original Complaint filed on November 27, 2024. Plaintiffs assert that the claim arises from the same general set of facts, involves the same injury, and concerns the same instrumentality as the wrongful death action. Plaintiffs further contend that the 90-day tolling provision of CCP § 364 extended the statute of limitations, and that the recent legislative amendments to CCP § 377.34 provide an extended filing period for

this claim. Plaintiffs thus ask the Court to overrule the demurrer, or alternatively, grant leave to amend.

In reply, Defendant emphasizes that a survival action does not relate back to a wrongful death cause of action alleged in the original Complaint, and therefore, cannot rely on the relation back doctrine to establish the survival action is timely. Defendant further argues that CCP §§ 364, 366.1, and 377.34, at most, can toll the statute of limitations one year from the date of decedent's death, and the SAC was not filed until nearly two years after the death.

Under CCP § 366.1, a survival action must be filed either (1) within six months of death or (2) within the limitations period applicable to the underlying cause of action. Under CCP § 340.5, a medical malpractice/wrongful death cause of action must be filed within one year from the date of the injury. It is undisputed that Decedent died on December 1, 2023. Thus, Plaintiffs' survival action was required to be filed either within six months from that date, or by December 1, 2024.

Here, Plaintiffs did not allege a survival action until the filing of the SAC on October 28, 2025, nearly a year after the expiration of the limitations period. Accordingly, the survival action is untimely.

Plaintiffs argue that their survival action claim is not time-barred because it relates back to the original Complaint filed on November 27, 2024, and is based on the same general set of facts, same injury, and same instrumentality.

"A new cause of action in an amended complaint is held to relate back to the earlier pleaded claims if the later cause of action '(1) rest[s] on the same general set of facts, (2) involve[s] the same injury, and (3) refer[s] to the same instrumentality, as the original one.'" (*Brumley v. FDCC Cal., Inc.* (2007) 156 Cal.App.4th 312, 323 [internal quotation omitted].) However, in California, it is well settled that "wrongful death and loss of consortium claims of heirs do not relate back to the decedent's personal injury claims arising from his or her fatal injury." (*Id.*) This is because "an amended pleading that adds a new plaintiff [cannot] relate back to the filing of the original complaint if the new party seeks to enforce an independent right or to impose greater liability against the defendants." (*Id.* at 324 [quoting *San Diego Gas & Electric Co. v. Sup. Ct.* (2007) 146 Cal.App.4th 1545, 1550].)

Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256 is instructive. There, the initial complaint alleged wrongful death claims in connection with the death of an adult child in nursing home care. (*Id.* at 1266.) The first amended complaint added a survivorship claim, purporting to assert the rights of the decedent. (*Id.* at 1267.) The defendant moved for summary adjudication of the survivorship claims as time barred. The court concluded that the survivorship claim did not relate back to the earlier filed wrongful death claims because "the survivor cause of action pleaded a different injury than the initial complaint." (*Id.* at 1278.) The court explained:

This survivor claim, which plaintiff pursued as the decedent's successor in interest, pleaded injury to the decedent In contrast, the earlier-filed wrongful death claim

pleaded only injury to plaintiff, acting for herself, as the decedent's heir. As a matter of law, these distinct claims are technically asserted by different plaintiffs, and they seek compensation for different injuries. [Citations.] Accordingly, the doctrine of relation back does not apply, and the entire survivor claim is barred by the statute of limitations.

(*Id.* at 1278–79.) As in *Quiroz*, it is clear that Plaintiffs' survival action does not relate back to the original Complaint asserting medical malpractice/wrongful death cause of action, as the claims contemplate distinct injuries.

Plaintiffs argue that *Quiroz* is factually and procedurally distinguishable because in that case, the plaintiff initially filed only a personal injury action, and after the plaintiff died, and after the one-year statute of limitations expired, her successors attempted to add both wrongful death and survival actions for the first time. The court described those claims as “entirely new causes of action” brought by different plaintiffs that could not relate back. (*Id.* at 1280.) Here, by contrast, Plaintiffs contend that they timely filed a wrongful death action arising from Decedent's death within one year and are merely adding a “companion” survival action arising from the same medical negligence and death.

As Defendant correctly argues, however, *Quiroz* makes clear that a survival action does not relate back to the original wrongful death claim, as they seek different damages (*i.e.*, a survival action seeks recovery for injuries to the decedent, whereas the wrongful death claim seeks compensation for injuries to the plaintiffs, growing out of the decedent's death). (*Id.*; see also *Brumley*, *supra*, 156 Cal.App.4th at 325.) Accordingly, the survival action claim is time-barred and does not relate back to the original Complaint.

Plaintiffs finally argue that (1) the 90-day tolling period under CCP § 364 extends the statute of limitations, and (2) recent legislative amendments to CCP § 377.34 provide an extended filing period. Both arguments are without merit.

First, CCP § 364 provides: “No action based upon the health care provider's professional negligence may be commenced during the 90 days following the service of the notice.” Here, Plaintiffs allegedly served a Notice of Intent to Commence Action on November 22, 2024, which tolled the one-year statute for medical malpractice by 90 days, extending the limitations period to March 2, 2025. However, the SAC adding the survival action was not filed until October 28, 2025, after expiration of the extended period. Thus, this argument fails.

Second, CCP § 377.34 provides:

In an action or proceeding by a decedent's personal representative or successor in interest on the decedent's cause of action, the damages recoverable are limited to the loss or damage that the decedent sustained or incurred before death, including any penalties or punitive or exemplary damages that the decedent would have been entitled to recover had the decedent lived, and **do not include damages for pain, suffering, or disfigurement.**

(CCP § 377.34(a) [emphasis added].) In 2021, the Legislature added subdivision (b), stating: “Notwithstanding subdivision (a), in an action or proceeding by a decedent’s personal representative or successor in interest on the decedent’s cause of action, the damages recoverable may **include damages for pain, suffering, or disfigurement** if the action or proceeding . . . was filed on or after January 1, 2022, and before January 1, 2026.” (CCP § 377.34(b) [emphasis added].)

Plaintiffs argue that this legislative change represents a shift in California survival action law and reflects legislative intent to provide a limited window for such recovery. Plaintiffs suggest this amendment allows their survival action claim to relate back to the original Complaint.

While the amendment temporarily expanded the types of damage recoverable in survival actions, it did not extend the statute of limitations or otherwise create a new filing period for survival causes of action. It simply allowed recovery of pre-death pain and suffering in timely filed survival actions. Thus, this argument is also without merit.

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the complainant to show the court that a pleading can be amended successfully. (*Id.*)

Here, Plaintiffs seek leave to amend in the event the Court sustains any part of the demurrer. However, there are no facts that can cure the deficiencies discussed above, as the untimeliness of Plaintiffs’ survival action is determined based on the date of Decedent’s death, which is December 1, 2023. (*Okun v. Sup. Ct.* (1981) 29 Cal.3d 442, 460 [leave to amend should be denied when “there are no circumstances under which an amendment would serve any useful purpose”].) Accordingly, leave to amend is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVME2500109	GRIFFIN VS BARNETT	DEMURRER

Tentative Ruling: SUSTAINED without leave to amend since there is judicially noticeable evidence that Plaintiff was aware of property owner’s identity prior to filing the Complaint.

This is a premises liability case. On February 1, 2023, Plaintiff Tia Griffin (“Plaintiff”) was walking within the hallway of her rental unit when she stepped on unsecured, loose, raised and/or warped flooring within the unit, causing her to trip and fall. Plaintiff alleges that the unit was negligently owned, operated and maintained by Defendants Alex Barnett (“Barnett”) and Hemet Homes, LLC (“Hemet Homes”). On January 8, 2025, Plaintiff filed her Complaint against Barnett for: (1) General Negligence; and (2) Premises Liability. On January 13, 2026, Plaintiff filed an Amendment to the Complaint (“Doe Amendment”) substituting Hemet Homes for Doe 1.

Hemet Homes now demurs to the Complaint and Doe Amendment. Hemet Homes argues that Plaintiff was not genuinely ignorant as to the identity of Hemet Homes or its